

3.	26CV1352	CITY OF PLACERVILLE VS. AMERIGAS PROPANE, L.P., A DELAWARE LIMITED PARTNERSHIP ET AL
MOTION FOR PREJUDGMENT POSSESSION/MOTION FOR TAX COLLECTOR CERTIFICATION		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 28, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 7, 2026. SHOULD A PARTY WISH TO REQUEST ORAL ARGUMENT, THE BELOW PROCEDURES REMAIN IN EFFECT.

On June 5, 2026, Plaintiff, City of Placerville, filed a complaint seeking to obtain certain real property by means of eminent domain. Plaintiff moves pursuant to the provisions of Code of Civil Procedure, § 1255.010 for an order for prejudgment possession of the subject real property after allegedly depositing with the State Treasury the probable amount of compensation, based on an appraisal, that will be awarded in the instant proceeding. Plaintiff further seeks an order directing the County Tax Collector to certify the specific information enumerated in Code of Civil Procedure, § 1260.250(c).

Notice

“(b) The plaintiff shall serve a copy of the motion on the record owner of the property and on the occupants, if any. The plaintiff shall set the court hearing on the motion not less than 60 days after service of the notice of motion on the record owner of unoccupied property. If the property is lawfully occupied by a person dwelling thereon or by a farm or business operation, service of the notice of motion shall be made not less than 90 days prior to the hearing on the motion.” (Code of Civil Procedure, § 1255.410(b).)

“...The motion shall include a statement substantially in the following form: “You have the right to oppose this motion for an order of possession of your property. If you oppose this motion you must serve the plaintiff and file with the court a written opposition to the motion within 30 days from the date you were served with this motion.” If the written opposition asserts a hardship, it shall be supported by a declaration signed under penalty of perjury stating facts supporting the hardship.” (Code of Civil Procedure, § 1255.410(a).)

The notice of motion includes a statement in substantially the same form as mandated in Section 1255.410(a).

The proofs of service in the court’s file declare: on June 5, 2026, notice of the hearing and the moving papers were served by mail to AmeriGas Propane, LP, Bank of America, and Stewart Title Guaranty Company. An amended notice was filed on June 10, 2026, declaring service was effectuated on the same date to AmeriGas Propane, LP, Bank of America, and Stewart Title Guaranty Company.

“(c) Not later than 30 days after service of the plaintiff's motion seeking to take possession of the property, any defendant or occupant of the property may oppose the motion in writing by serving the plaintiff and filing with the court the opposition. If the written opposition asserts a hardship, it shall be supported by a declaration signed under penalty of perjury stating facts supporting the hardship. The plaintiff shall serve and file any reply to the opposition not less than 15 days before the hearing.” (Code of Civil Procedure, § 1255.410(c).)

There is no opposition to the motion in the court's file.

Prejudgment Possession

“(a) At the time of filing the complaint or at any time after filing the complaint and prior to entry of judgment, the plaintiff may move the court for an order for possession under this article, demonstrating that the plaintiff is entitled to take the property by eminent domain and has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article. ¶ The motion shall describe the property of which the plaintiff is seeking to take possession, which description may be by reference to the complaint, and shall state the date after which the plaintiff is seeking to take possession of the property. ...” (Code of Civil Procedure, § 1255.410(a).)

“(a) At any time before entry of judgment, the plaintiff may deposit with the State Treasury the probable amount of compensation, based on an appraisal, that will be awarded in the proceeding. The appraisal upon which the deposit is based shall be one that satisfies the requirements of subdivision (b). The deposit may be made whether or not the plaintiff applies for an order for possession or intends to do so.” (Code of Civil Procedure, § 1255.010(a).)

“(b) Before making a deposit under this section, the plaintiff shall have an expert qualified to express an opinion as to the value of the property (1) make an appraisal of the property and (2) prepare a written statement of, or summary of the basis for, the appraisal. The statement or summary shall contain detail sufficient to indicate clearly the basis for the appraisal, including, but not limited to, all of the following information: ¶ (A) The date of valuation, highest and best use, and applicable zoning of the property. ¶ (B) The principal transactions, reproduction or replacement cost analysis, or capitalization analysis, supporting the appraisal. ¶ (C) If the appraisal includes compensation for damages to the remainder, the compensation for the property and for damages to the remainder separately stated, and the calculations and a narrative explanation supporting the compensation, including any offsetting benefits.” (Code of Civil Procedure, § 1255.010(b).)

“(d)(1) If the motion is not opposed within 30 days of service on each defendant and occupant of the property, the court shall make an order for possession of the property if the court finds each of the following: ¶ (A) The plaintiff is entitled to take the property by eminent domain. ¶ (B) The plaintiff has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article. ¶ (2) If the motion is

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opposed by a defendant or occupant within 30 days of service, the court may make an order for possession of the property upon consideration of the relevant facts and any opposition, and upon completion of a hearing on the motion, if the court finds each of the following: ¶ (A) The plaintiff is entitled to take the property by eminent domain. ¶ (B) The plaintiff has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article. ¶ (C) There is an overriding need for the plaintiff to possess the property prior to the issuance of final judgment in the case, and the plaintiff will suffer a substantial hardship if the application for possession is denied or limited. ¶ (D) The hardship that the plaintiff will suffer if possession is denied or limited outweighs any hardship on the defendant or occupant that would be caused by the granting of the order of possession.” (Code of Civil Procedure, § 1255.410(d).)

Several declarations were submitted in support of the motion. Melissa Savage, P.E., declares the Project involves construction of bicycle and pedestrian facilities on Placerville Drive between Armory Drive and US Highway 50 undercrossing, as well as the construction of sidewalk and bicycle facilities on Green Valley Road from Placerville Drive to Mallard Lane (Declaration of Melissa Savage in Support of Motion for Prejudgment Possession, paragraph 4). In order for Plaintiff to construct the proposed sidewalk behind the curb and gutter and along the property frontage, Plaintiff requires a fee acquisition of 2,356 square feet. *Id.* at paragraph 5. At the driveway to the larger parcel, Plaintiff requires a temporary construction easement of 3,310 square feet to perform driveway conforming paving to match grades on the larger parcel. *Id.*

The proposed public sidewalk on Green Valley Road will fix a gap in the existing sidewalk which currently terminates at the corner of Green Valley Road and Mallard Lane. *Id.* at paragraph 6. This piece of sidewalk is critical to ensure that there is no gap left in the public sidewalk and to alleviate public safety concerns that a gap would create. *Id.* It will provide one continuous sidewalk path of travel without forcing pedestrians to cross the street and will therefore improve pedestrian and traffic safety. *Id.* Failure to build this segment of sidewalk on the frontage would deem the Project out of compliance with the approved scope of work for the Project funding, and the Project would not comply with the scope of work or purpose and need of the approved environmental document. *Id.* This would ultimately be contrary to the public safety concerns that the Project seeks remedy. *Id.*

William T. Chisum declares that the City Council authorized the institution of these proceedings by adoption of a Resolution of Necessity, Resolution No. 9518, on April 14, 2026. (Declaration of William T. Chisum in Support of Motion for Prejudgment Possession, paragraph 4, Exhibit C). The City Council found and the Resolution established that: (1) the public interest and necessity require the proposed Project; (2) the proposed Project is planned or located in the manner that will be most compatible with the greatest public good and the least private injury; (3) the subject property and interests therein are necessary for the proposed Project; and (4) prior to making the above findings and determinations the offer required by Section 7267.2 of

the Government Code was made to the owners of record of the subject property and interests therein. *Id.* at Exhs. B and C. Through the Resolution of Necessity's findings, the City has conclusively established items 1 through 3, and evidence of the required offer letter was presented to the City Council at the time of the Resolution of Necessity hearing. *Id.*

The notice of deposit of the probable compensation with the State Treasurer in the amount of \$21,400.00 was filed on June 5, 2026. The proof of service declares that on June 5, 2026, the notice of deposit was served by mail AmeriGas Propane, LP, Bank of America, and Stewart Title Guaranty Company.

Under the totality of the circumstances presented it appears appropriate to grant the motion. The Court finds the declarations in support of the motion establish the following: Plaintiff is entitled to take the property by eminent domain; and the Plaintiff has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article.

Tax Certification

“(a) In a county where both the auditor and the tax collector are elected officials, the court shall by order give the auditor or tax collector the legal description of the property sought to be taken and direct the auditor or tax collector to certify to the court the information required by subdivision (c), and the auditor or tax collector shall promptly certify the required information to the court. In all other counties, the court shall by order give the tax collector the legal description of the property sought to be taken and direct the tax collector to certify to the court the information required by subdivision (c), and the tax collector shall promptly certify the required information to the court.” (Code of Civil Procedure, § 1260.250(a).)

“(b) The court order shall be made on or before the earliest of the following dates: ¶ (1) The date the court makes an order for possession...” (Code of Civil Procedure, § 1260.250(b)(1).)

“(c) The court order shall require certification of the following information: ¶ (1) The current assessed value of the property together with its assessed identification number. ¶ (2) All unpaid taxes on the property, and any penalties and costs that have accrued thereon while on the secured roll, levied for prior tax years that constitute a lien on the property. ¶ (3) All unpaid taxes on the property, and any penalties and costs that have accrued thereon while on the secured roll, levied for the current tax year that constitute a lien on the property prorated to, but not including, the date of apportionment determined pursuant to Section 5082 of the Revenue and Taxation Code or the date of trial, whichever is earlier. If the amount of the current taxes is not ascertainable at the time of proration, the amount shall be estimated and computed based on the assessed value for the current assessment year and the tax rate levied on the property for the immediately prior tax year. ¶ (4) The actual or estimated amount of taxes on the property that are or will become a lien on the property in the next succeeding tax year prorated to, but not including, the date of apportionment determined pursuant to Section 5082

of the Revenue and Taxation Code or the date of trial, whichever is earlier. Any estimated amount of taxes shall be computed based on the assessed value of the property for the current assessment year and the tax rate levied on the property for the current tax year. ¶ (5) The amount of the taxes, penalties, and costs allocable to one day of the current tax year, and where applicable, the amount allocable to one day of the next succeeding tax year, hereinafter referred to as the “daily prorate.” ¶ (6) The total of paragraphs (2), (3), and (4).” (Code of Civil Procedure, § 1260.250(c).)

“(d) If the property sought to be taken does not have a separate valuation on the assessment roll, the information required by this section shall be for the larger parcel of which the property is a part.” (Code of Civil Procedure, § 1260.250(d).)

The Court having granted the motion for prejudgment possession, the Court will also direct the County Tax Collector to certify the information enumerated in Section 1260.250(c).

TENTATIVE RULING #3:

PLAINTIFF’S MOTIONS FOR PREJUDGMENT POSSESSION AND TAX COLLECTOR CERTIFICATION ARE GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.